

		- Documents containing material protected by a privilege, (see <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]); - Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283). A sealing order must: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (See Cal. Rules of Court, rule 2.550(e)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.) Here, the requirements of Rule 2.551 have not been met. Defendant has not filed with the court a proof of service showing that he has served the motion papers on all parties that have appeared in this action and on all parties that have access to the records to be placed under seal. Therefore, the court will continue the hearing on this motion and order that Defendant serve the motion papers as required by Rule 2.551(b)(2). If Defendant fails to do so, the court may deny the motion. In addition, rather than filing the Ortiz Declaration conditionally under seal, Defendant attached the Ortiz Declaration to the motion papers. (See ROA #149.) Therefore, the court will strike the attached Ortiz Declaration from the motion papers. The court clerk shall give notice of this ruling.
7	So Cal Residential Homes, LLC vs. Tirado 30-2025-01475479	<u>Motion for Release of Payments and to Modify Payments</u> Plaintiff So Cal Residential Homes, LLC's Application for the Release of Rental Deposits to Plaintiff and Increase in Monthly Rental Deposit Amount is DENIED.

		<u>Pending Motion</u> Plaintiff So Cal Residential Homes, LLC moves for an order disbursing to it all amounts that Defendants Suzette Tirado and Enrique Reyes have paid into the court, requiring Defendants to make all future payments directly to Plaintiff, and increasing the amount that Defendants must going forward. <u>Prior Proceedings</u> On August 21, 2025, the court ordered that Defendants "deposit \$4,625 with the Court every 1st of the month beginning September 1, 2025." (ROA #77 at p. 1.) <u>Ordering Payments to Be Made Into the Court in Unlawful Detainer Actions</u> The parties to an unlawful detainer action are entitled to have the matter tried and decided in an expeditious manner. As the Appellate Division of the Superior Court has explained: Unlawful detainer trials are entitled to statutory preference over all other civil matters, and are required to be held within 20 days following the date that a request to set the matter for trial is made. Extensions may be granted upon the agreement of the parties, and no continuance of an unlawful detainer trial can exceed 10 days without the consent of the adverse party. (<i>Garcia v. Cruz</i> (2013) 221 Cal.App.4th Supp. 1, 5-6, citations omitted.) The only exception to this is set out in Civil Procedure Code section 1170.5, which states: If trial is not held within the time specified in this section, the court, upon finding that there is a reasonable probability that the plaintiff will prevail in the action, shall determine the amount of damages, if any, to be suffered by the plaintiff by reason of the extension, and shall issue an order requiring the defendant to pay that amount into court as the rent would have otherwise become due and payable or into an escrow designated by the court for so
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		long as the defendant remains in possession pending the termination of the action. (Code Civ. Proc., § 1170.5, subd. (c).) This provision has been interpreted to mean that "[n]o other extensions are permitted unless the court, on its own motion or that of a party, holds a hearing to determine the reasonable probability that the plaintiff will prevail at trial and the amount of damages, if any, the plaintiff will suffer by virtue of the extension of the trial date." (<i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6.) The court makes its determination of the amount of damages based upon "the plaintiff's verified statement of the contract rent for rental payment, any verified objection thereto filed by the defendant, and the oral or demonstrative evidence presented at the hearing." (Code Civ. Proc., § 1170.5, subd. (c).) Thus, Section 1170.5 allows the trial court to take actions that might delay the plaintiff taking possession of the property "while assuring the availability of fair compensation to the plaintiff for any delay in acquiring possession." (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 393.) "The court's remedy, should the defendant fail to make the payment as ordered, is to hold the trial within 15 days of the date the payment was due." (<i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6, citing Code Civ. Proc., § 1170.5, subd.s (c), (d).) <u>Disbursement of Payments Made and Making Payments to Plaintiff</u> Plaintiff moves that the amounts already paid by Defendants be disbursed to Plaintiff and that all future payments be made directly to Plaintiff. However, Plaintiff provides no authority for these requests. Section 1170.5 itself only provides authority for the court to order that payments be made into the court or into an escrow account: [T]he court . . . shall issue an order requiring the defendant to pay that amount <i>into court</i> as the rent would have otherwise become due and payable <i>or into an escrow designated by the court</i>
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		(Code Civ. Proc., § 1170.5, subd. (c), italics added.) Plaintiff points to no law that would allow the court to order that payments be made directly to Plaintiff, and the court is not aware of any. In addition, Section 1170.5 states that the payments shall continue to be made “for so long as the defendant remains in possession <i>pending the termination of the action.</i>” (<i>Ibid.</i>, italics added.) Further, Section 1170.5 only grants the court the authority to disburse the payments after resolution of the case: “After trial of the action, the court shall determine the distribution of the payment made into court or the escrow designated by the court.” (Code Civ. Proc., § 1170.5, subd. (f).) Again, Plaintiff points to nothing in Section 1170.5 or other law that would allow the court to order a distribution of the payments before the case is decided, and the court is not aware of any. In the Reply in Support of Plaintiffs’ Ex Parte Application for the Release of rental Deposits to Plaintiff and Increase in Monthly Rental Deposit Amount (Reply), Plaintiff argues for the first time that Section 1170.5 does not control here, because the court imposed the requirement of payments as a condition of an equitable stay under Civil Procedure Code section 526 and <i>Medford v. Superior Court</i> (1983) 140 Cal.App.3d 236. However, courts will not consider new issues raised for the first time in a reply without a showing of good cause and an opportunity to respond. (See <i>Reichardt v. Hoffman</i> (1997) 52 Cal.App.4th 754, 765-765 [court will not consider issues raised for first time in reply brief without showing of good cause and opportunity for opposing party to respond]; <i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010 [“points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before”].) Here, Plaintiff has not shown good cause nor have Defendants been given an opportunity to respond. The court would reject Plaintiff’s arguments on that basis.
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		However, even if the court were to consider Plaintiff's contentions on the merits, the court would still deny the motion. In its prior ruling ordering Defendants to make monthly payments into the court, the court did not state that its orders were made pursuant to Section 526. Rather, the court indicated that ordering Defendants to make monthly payments was analogous to requiring a bond where the court granted preliminary injunctive relief in the form of a stay: "Staying an unlawful detainer matter pending resolution of a related matter is <i>in the nature</i> of an injunction and a bond may be required. (See Code Civ. Proc. § 526.)" (ROA #77 at p. 1, italics added.) This is supported by the fact that Plaintiff based its initial request that Defendants make payment on Section 1170.5 and not Section 526. (See ROA #67.) In any case, when the court grants preliminary injunctive relief, it is only authorized to order that a bond be posted; the court does not have the power to order that monthly payments be made into the court. (See Code Civ. Proc., § 529, subd. (a).) It is true that when it issued the prior order that Defendants make monthly payments, the court did cite to <i>Medford v. Superior Court</i>. (See ROA #77 at p. 1.) However, that case does not cite to Section 526 or 529. <i>Medford v. Superior Court</i> only refers to Section 1170.5, the only statute of which this court is aware that authorizes the court to order defendants to make monthly payments. (See <i>Medford v. Superior Court</i>, <i>supra</i>, 140 Cal.App.3d at pp. 241-242.) Here, Plaintiff has failed to point to any law that grants the court the power to disburse payments to Plaintiff before resolution of the case or to order that payments be made directly to Plaintiff. Therefore, the court will deny this portion of the motion. <u>Increasing Amount of Payments</u>
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		Plaintiff also requests that the court increase the amount of the payments to be made by Defendants. (fn.1) (fn.1) Plaintiff repeatedly claims that the court “invited” Plaintiff to seek modification of the amount of the payments made by Defendants. (See ROA #121 at p. 2:25-3:1, 4:4-7, 5:14-16, 6:2-4, 6:6-7.) The court did no such thing. Rather, in an order in the related action, the court merely stated that either Plaintiff or Defendants “may seek modification of those orders to address any change in circumstances (for example, if the amount of rent deposited needs to be increased).” (<i>Tirado v. Estate of Eddie E. Poupart, Jr., et al.</i>, Case Number 2024-01448646, ROA #144.) The court finds that this type of hyperbole, which Plaintiff has engaged in on several occasions in the related case and this case, to be neither helpful nor persuasive. In <i>Medford v. Superior Court</i>, the Court of appeal held that: Section 1170.5 limits the amount that the court can require to be deposited to prospective damages the landlord may suffer as the result of granting a continuance of the trial date to a tenant in possession. In determining those damages the court must consider any evidence presented by the parties on the <i>issue of the rental value of the property</i>. (See <i>Medford v. Superior Court</i>, <i>supra</i>, 140 Cal.App.3d at pp. 241, italics added, superseded by statute on other grounds, <i>Levine v. Pollack</i> (1995) 37 Cal.App.4th 129, 137-138.) Here, Plaintiff has provided no evidence of the fair market rental value of the property at the current date. Instead, Plaintiff bemoans the fact that the expenses of owning the property (estimated to be \$8,732 per month) far exceed the amount of the payments being made by Defendants (\$4,625 per month). (See Decl. of Paul Wilcher in Supp. of Pltf.’s Ex Parte Application for the Release of Rental Deposits to Pltf. And Increase in Monthly Rental Deposit Amount, ¶ 3, Exh.s A-C.) Thus, Plaintiff only provides evidence of the carrying costs of the property. (See <i>ibid.</i>) However,
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		considering this evidence, rather than the fair market rental value is not only inconsistent with <i>Medford v. Superior Court</i> but also Section 1170.5. That statute specifically states that “[t]he determination of the amount of the payment shall be based on the plaintiff’s verified statement of the contract rent for rental payment” (Code Civ. Proc., § 1170.5, subd. (c); see also Code Civ. Proc., § 1176 [“As used in this subdivision, ‘reasonable rental value’ means the contract rent unless the rental value has been modified by the trial court in which case that modified rental value shall be used.”].) Further, Section 1170.5 authorizes the court to order payments of “the amount of damages, if any, to be suffered by the plaintiff by reason of the extension.” (Code Civ. Proc., § 1170.5, subd. (c).) The amount of damages suffered by Plaintiff is not its carrying costs, which Plaintiff would have to pay even if no extension of the trial had been granted or if no stay had been issued. The damages suffered by Plaintiff arise from Defendants’ continued occupation of the property and the resulting inability by Plaintiff to lease the property to another tenant. In other words, Plaintiff’s damages are the fair market value rent that it could collect from another tenant. (See <i>Garcia v. Cruz, supra</i>, 221 Cal.App.4th Supp. at p. 6 [“The court’s determination of the amount of potential damages must be based on ‘plaintiff’s verified statement of the contract rent for rental payment, any verified objection thereto filed by the defendant, and the oral and demonstrative evidence presented at the hearing.’”], quoting Code Civ. Proc., § 1170.5, subd. (c).) Not surprisingly, when the court issued its prior order requiring Defendants to make monthly payments, it based that order on the finding that “the fair rental value of the property [is] \$4,625.” (ROA #77 at p. 1.) Here, without any evidence as to the fair market rental value of the property at the current time, Plaintiff fails to meet its burden to establish the damages it will face due to the extension of the trial date or granting of the stay. Therefore, the court will deny this portion of the motion.
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		Defendants shall give notice of this ruling.
8	Ramirez vs. City of Santa Ana 30-2022-01287702	<u>Motion to Disqualify and for Sanctions</u> Defendant City of Santa Ana's Motion for Disqualification and Motion for Sanctions Against Plaintiff's Counsel for Use of Fake AI Cases and Further Misrepresentations of Law to this Court is GRANTED in part and DENIED in part. The court DENIES Defendant City of Santa Ana's request to disqualify Plaintiff Rita Ramirez's counsel of record. The court GRANTS in part Defendant City of Santa Ana's request for monetary sanctions against Plaintiff Rita Ramirez. Counsel for Plaintiff Rita Ramirez are ORDERED to pay Defendant City of Santa Ana sanctions in the amount of \$12,000 within 30 days of this ruling. Counsel for Plaintiff Rita Ramirez are ORDERED to serve a copy of this ruling on Plaintiff Rita Ramirez. The court clerk is ORDERED to serve a copy of this ruling on the State Bar of California. <u>Pending Motion</u> Defendant City of Santa Ana moves to disqualify counsel for Plaintiff Rita Ramirez and for monetary sanctions in the amount of \$25,000 against counsel for Plaintiff Rita Ramirez. <u>Stay on Appeal</u> On June 8, 2026, Plaintiff filed a notice of appeal of the order issued April 10, 2026, granting Defendant's motion for new trial and motion for judgment notwithstanding the verdict. (See ROA #963.) On August 17, 2026, Plaintiff filed a notice of appeal of the judgment entered on July 1, 2026. (See ROA #1022.) As an initial matter, Plaintiff contends that this court cannot hear this motion because the filing of the notice of appeal stays proceedings in this court.